

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-02661

CASE NAME: JPMORGAN CHASE BANK, N.A. VS. JUSTIN EVERIDGE

***HEARING ON MOTION IN RE: NOTICE OF MOTION AND MOTION PLAINTIFF, TO VACATE
DISMISSAL AND ENTER JUDGMENT UNDER TERMS OF V.S. STIPULATED SETTLEMENT
FILED BY: JPMORGAN CHASE BANK, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a motion to vacate dismissal and enter judgment pursuant to stipulation.
The Motion and its supporting documents are timely.

This Motion is unopposed.

Analysis

Mail service was completed at an address for the Defendant that was listed on the Answer.

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for the dismissal to be vacated and judgment to be entered in the amount of \$6,846.29, plus costs, and less any credits for payments received.

The agreement was filed with the court.

The case was then dismissed.

The Defendant made payments of \$746.29.

Costs are \$0.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$6,100.

Plaintiff to file order on Motion, as well as submit Judgment.

9. 9:00 AM CASE NUMBER: L25-04362

CASE NAME: CAPITAL ONE, N.A. VS. LUCILA RODRIGUEZ

***HEARING ON MOTION FOR DISCOVERY NOTICE OF MOTION AND MOTION FOR ORDER THAT
MATTERS INV. REQUEST FOR ADMISSION OF TRUTH OF FACTS BE DEEMED ADMITTED
FILED BY: CAPITAL ONE, N.A.**

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Order that Matters in Request for Admission of Truth of Facts be Deemed Admitted (Motion).

Plaintiff attached the particular facts at issue, numbered One through Eight and entitled, "Set One," in Attachment One of Exhibit One to their Motion, as well as proof that they served Defendant with the discovery request, and declared that Defendant never responded to the request.

Plaintiff attached a proof of service of this Motion, indicating mail service to Defendant at the address listed on Defendant's Answer.

No response has been filed by the Defendant.

Analysis

Where a party to whom requests for admission are directed fails to serve a timely response, the propounding party may seek a court order that the genuineness of any documents and/or the truth of any matters specified in the requests be deemed admitted pursuant to Code of Civil Procedure section 2033.280. See Code Civ. Proc. § 2033.280(b).

The responding party, or the Defendant in this matter, may avoid such an outcome, under Section 2033.280(a), if they subsequently serve, before the hearing, a *substantially compliant* response AND demonstrate that the reason for the untimely response was due to mistake, inadvertence, or excusable neglect.

The propounding party may also seek the imposition of monetary sanctions. *Id.* There is no meet and confer requirement for a motion to deem matters admitted under Section 2033.280. See *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 777. A monetary sanction is mandatory. See Code of Civ. Proc. Section 2033.280(c).

Disposition

The court grants Plaintiff's Motion.

The Facts at issue in Exhibit One of Plaintiff's moving papers shall be deemed admitted.

Plaintiff to draw and file Order.